

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
RAUL VELAZQUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
CHRISTOPHER DURAN, Shield Number 05716, and
POLICE OFFICER "JOHN DOE".Defendants.
-----X

Index No.:

Date Purchased:

SUMMONSPlaintiff designates Queens
County as the place of trial.The basis of venue is:
Location of the events alleged
herein**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 31, 2021

MORGAN LEVINE DOLAN, P.C.



By:

JOHN P. COLLORAFI, ESQ.
Attorneys for Plaintiff
RAUL VELAZQUEZ
18 East 41st Street, 6th Floor
New York, New York 10017
(212) 785-5115**Defendants' Addresses:**
THE CITY OF NEW YORK
100 Church Street
New York, NY 10017

THE NEW YORK CITY POLICE DEPARTMENT

One Police Plaza

New York, New York 10038

POLICE OFFICER CHRISTOPHER DURAN, Shield Number 05716

One Police Plaza

New York, New York 10038

POLICE OFFICER "JOHN DOE"

One Police Plaza

New York, New York 10038

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Plaintiff, by his attorneys, MORGAN LEVINE DOLAN, P.C., complaining of the
Defendants, respectfully alleges, upon information and belief, as follows:

1. That this action is brought pursuant to the provisions of the New York State Comprehensive Motor Vehicle Insurance Reparations Act and the Plaintiff has complied with all of the conditions thereof.

2. That Plaintiff has sustained serious injury as defined in Section 5102(d) of the Insurance Law of the State of New York.

3. That by reason of the above, the Plaintiff is entitled to recover for non-economic losses as are not included within the definition of "basic economic loss" as set forth in Section 5102(a) of the Insurance Law.

4. That the Plaintiff is a covered person as defined in Section 5102(j) of the Insurance Law.

5. That the limitations on liability set forth in Article 16 of the CPLR do not apply because this action falls within one or more of the exemptions set forth in CPLR §1602.

Index No.:

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VERIFIED COMPLAINT

6. That at all times hereinafter mentioned, Plaintiff, RAUL VELAZQUEZ, was and is a resident of the Neighborhood of Jamaica, County of Queens and State of New York.

7. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and is a municipal corporation.

8. That at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, was and is a municipal agency of defendant, THE CITY OF NEW YORK

9. That at all times hereinafter mentioned, defendant, OFFICER CHRISTOPHER DURAN, Shield Number 05716, was and is an employee of defendant, NEW YORK POLICE DEPARTMENT.

10. That at all times hereinafter mentioned, defendant, OFFICER "JOHN DOE", the first name "John" and last name "Doe" being fictitious and whose true identity remains unknown, was and is an employee of defendant, NEW YORK POLICE DEPARTMENT.

11. That Plaintiff herein has complied with all of the conditions precedent to bring the within action and more particularly, on or about November 10, 2020, and within ninety (90) days thereafter Plaintiff duly served a written Notice of Claim upon defendants herein pursuant to law.

12. That more than thirty (30) days have elapsed since said Notice of Claim has been served and that said claim remains unadjusted and defendants have failed and refused to make adjustment of said claim.

13. That the within action has been commenced within one year of the date of occurrence and that defendant, THE CITY OF NEW YORK, conducted a statutory hearing pursuant to General Municipal Law § 50(h) on or about March 12, 2021.

14. That at all times mentioned, the Plaintiff, RAUL VELAZQUEZ, was the operator and the owner of a motorized bicycle, a white and blue 2007 Yamaha ZY450F.

15. That at all times mentioned, the defendant, NEW YORK POLICE DEPARTMENT, was the owner of an unmarked Ford Fusion, the license plate number of which remains unknown.

16. That at all times mentioned, the defendant, POLICE OFFICER "JOHN DOE", was the operator of an unmarked Ford Fusion, the license plate number of which remains unknown.

17. On or about November 10, 2020, defendant POLICE OFFICER "JOHN DOE", operated the aforementioned motor vehicle with the knowledge of defendant NEW YORK POLICE DEPARTMENT.

18. On or about November 10, 2020, defendant POLICE OFFICER "JOHN DOE", operated the aforementioned motor vehicle with the permission of defendant NEW YORK POLICE DEPARTMENT.

19. On or about November 10, 2020, defendant POLICE OFFICER "JOHN DOE", operated the aforementioned motor vehicle with the consent of defendant NEW YORK POLICE DEPARTMENT.

20. On or about November 10, 2020, defendant POLICE OFFICER "JOHN DOE" was employed by defendant NEW YORK POLICE DEPARTMENT.

21. On or about November 10, 2020, defendant POLICE OFFICER "JOHN DOE" was acting within the scope of his employment with defendant NEW YORK POLICE DEPARTMENT.

22. On or about November 10, 2020, defendant POLICE OFFICER "JOHN DOE" managed the aforementioned motor vehicle.

23. On or about November 10, 2020, defendant NEW YORK POLICE DEPARTMENT managed the aforementioned motor vehicle.

24. On or about November 10, 2020, defendant POLICE OFFICER "JOHN DOE" maintained the aforementioned motor vehicle.

25. On or about November 10, 2020, defendant NEW YORK POLICE DEPARTMENT maintained the aforementioned motor vehicle.

26. On or about November 10, 2020, defendant POLICE OFFICER "JOHN DOE" controlled the aforementioned motor vehicle.

27. On or about November 10, 2020, defendant NEW YORK POLICE DEPARTMENT controlled the aforementioned motor vehicle

28. On or about November 10, 2020, defendant POLICE OFFICER "JOHN DOE" had the duty to repair the aforementioned motor vehicle.

29. On or about November 10, 2020, defendant NEW YORK POLICE DEPARTMENT had the duty to repair the aforementioned motor vehicle.

30. On or about November 10, 2020, at approximately 11:30pm, the motorized bicycle which the Plaintiff, RAUL VELAZQUEZ, was operating was travelling on Catalpa Avenue at or near directly in front of the 104th Precinct of the NEW YORK POLICE DEPARTMENT, in the Town of Ridgewood, County of Queens, and State of New York.

31. On or about November 10, 2020, at approximately 11:30pm, the motor vehicle which defendant, POLICE OFFICER "JOHN DOE", was operating was travelling on Catalpa Avenue at or near directly in front of the 104th Precinct of the NEW YORK POLICE DEPARTMENT, in the Town of Ridgewood, County of Queens, and State of New York.

32. On or about November 10, 2020, at approximately 11:30pm, the motorized bicycle which the Plaintiff, RAUL VELAZQUEZ, was operating was coming to a complete stop on Catalpa Avenue at or near directly in front of the 104th Precinct of the NEW YORK POLICE

DEPARTMENT, in the Town of Ridgewood, County of Queens, and State of New York, when Plaintiff's motorized bicycle was struck by the motor vehicle operated by POLICE OFFICER "JOHN DOE".

33. That the aforementioned occurred as a result of the negligence, carelessness and recklessness of Defendants, NEW YORK POLICE DEPARTMENT and POLICE OFFICER "JOHN DOE", in the ownership, operation, management, maintenance, control and repair of their motor vehicle.

34. By reason of the foregoing Plaintiff, RAUL VELAZQUEZ, was injured.

35. By reason of the foregoing Plaintiff, RAUL VELAZQUEZ, was seriously injured.

36. By reason of the foregoing, plaintiff, RAUL VELAZQUEZ, has sustained a serious injury as defined in Section 5102(d) of the Insurance Law and/or economic loss greater than basic economic loss as defined in Section 5102(a) of the Insurance Law of the State of New York.

37. By reason of the foregoing, Plaintiff, RAUL VELAZQUEZ, has sustained economic damages.

38. By reason of the foregoing, Plaintiff, RAUL VELAZQUEZ, has been damaged in an amount in excess of the jurisdictional limits of all lower courts in which this matter might otherwise have been brought.

AND FOR A SECOND CAUSE OF ACTION

39. Plaintiff, RAUL VELAZQUEZ, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "38" with the same force and effect as if set forth fully at length herein.

40. That on or about November 10, 2020, Plaintiff, RAUL VELAZQUEZ, was intentionally touched, pushed, assaulted, battered, violated, humiliated, and handcuffed by the

CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, POLICE OFFICER "JOHN DOE" and POLICE OFFICER CHRISTOPHER DURAN, Shield Number 05716, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to Plaintiff.

41. That on or about November 10, 2020, CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, POLICE OFFICER "JOHN DOE" and POLICE OFFICER CHRISTOPHER DURAN, Shield Number 05716, their agents, servants and employees, acting as agents and on behalf of the CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff RAUL VELAZQUEZ, insofar as they have the real and/or apparent ability to cause imminent harmful and/or offensive bodily contact, and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff RAUL VELAZQUEZ, and their act caused an apprehension of such contact in the Plaintiff, and in a hostile and/or offensive manner touched and beat the Plaintiff and/or caused offensive bodily contact to the Plaintiff RAUL VELAZQUEZ, and caused such battery on and about his head, neck, back, body and limbs.

42. That by reason of the aforesaid intentional assault and battery, which was committed in an excessive manner, with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority, and without any probable or reasonable cause, Plaintiff RAUL VELAZQUEZ suffered severe and permanent bodily injury on and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

43. That as a result of the aforesaid assault and battery, the Plaintiff RAUL VELAZQUEZ was caused to sustain serious, severe, painful and permanent bodily injuries, so that he was rendered sick, sore, lame and disabled and so remains, and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of said injuries, and he was and will be prevented from attending his usual occupation and duties.

44. At all times hereinafter mentioned, the actions of CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, POLICE OFFICER "JOHN DOE" and POLICE OFFICER CHRISTOPHER DURAN, Shield Number 05716, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

45. That by reason of the foregoing, Plaintiff RAUL VELAZQUEZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AND FOR A THIRD CAUSE OF ACTION

46. Plaintiff RAUL VELAZQUEZ repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "38" with the same force and effect as if fully set forth at length herein.

47. That the CITY OF NEW YORK, the NEW YORK POLICE DEPARTMENT, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including, but not limited to, POLICE OFFICER "JOHN DOE" and POLICE OFFICER CHRISTOPHER DURAN, Shield Number 05716, insofar as the foregoing police officers, as employees of the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT, were not qualified to be hired, retained or promoted as police officers, and lacked the experience, skill, training and ability to be employed,

retained and utilized in the manner that each were and are employed the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT.

48. That the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT failed to adequately test, analyze test results and/or investigate the above-referenced police officers' backgrounds and performances.

49. That the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT failed to adequately screen the above-referenced police officers, failed to adequately monitor said police officers and failed to adequately discipline said police officers when they violated Patrol Guidelines.

50. Defendants the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT were also negligent in that prior to, and at the time of, the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or, at the very least, had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, nor use excessive force during the arrest process.

51. That by reason of the above, the Plaintiff RAUL VELAZQUEZ was injured in mind and body as he was arrested and prosecuted, and rendered sick, sore and damaged.

52. At all times hereinafter mentioned, the actions of the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT and all defendants herein, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

53. That by reason of the foregoing, Plaintiff RAUL VELAZQUEZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, Plaintiff demands judgment against Defendant herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

DATED: NEW YORK, NEW YORK
March 31, 2021

A handwritten signature in black ink, appearing to read 'John P. Collorafi', is written over a light gray rectangular background.

JOHN P. COLLORAFI

VERIFICATION

JOHN P. COLLORAFI, an attorney duly admitted to practice law in the State of New York, affirms the following under penalty of perjury:

I am an associate with the law firm of MORGAN LEVINE DOLAN, P.C., attorneys for the plaintiff herein.

I have read the foregoing **Summons and Complaint** and know the contents thereof, and upon information and belief your affirmant believes the matters therein alleged to be true.

The reason this verification is made by your affirmant and not the plaintiff herein is that plaintiff herein resides in a county other than that in which your affirmant maintains his offices.

The source of your affirmant's information and the grounds of his belief are communications, papers, reports and investigations contained in the file.

DATED: New York, New York
March 31, 2021

A handwritten signature in black ink, appearing to read "J. P. Collorafi", is written over a light gray rectangular background.